

25STCV25446 25STCV25446

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV25446 Hearing Date: August 3, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

CHRIS

BAGGETT,

Plaintiff,

vs.

ALLIED

HEALTH SOLUTIONS, INC., et al.,

Defendants

Case No.:

25STCV25446

Hearing

Date:

August 3, 2026

ORDER

DEEMING MOTIONS TO COMPEL RESPONSES TO DISCOVERY MOOT.

I. BACKGROUND

Plaintiff Chris Baggett ("Baggett") was allegedly employed by Defendants Allied Health Solutions, Inc. ("AHS"), Allied Health Solutions Medical Group ("AHSMG"), and Allied Health Solutions IPA ("IPA"), when he developed and/or discovered physical and mental disabilities. Defendants allegedly denied Baggett various reasonable accommodations and a good faith interactive process, instead subjecting Baggett to discrimination, a hostile work environment, and eventual wrongful termination. Defendants also allegedly failed to properly pay Baggett. Baggett sued Defendants for 16 causes of action, including disability discrimination under FEHA.

On March 30, 2026, Baggett filed the instant motions to compel IPA and AHSMG's responses to Request for Production of Documents, Set One. Baggett also requests sanctions of \$3,360.00 against each defendant. IPA and AHSMG filed oppositions. Baggett filed replies.

II. LEGAL STANDARD

Under Code of Civil Procedure section
2030.290,[1]

"If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories." According to section 2030.260, for a response to interrogatories to be timely, it must be served within 30 days of service.

Section 2030.290, subdivision (c), states "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Under

section 2031.300, "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the following rules shall apply: (b) The party making the demand may move for an order compelling response to the demand." According to section 2031.260, for a response to request for production of documents to be timely, it must be served within 30 days of service.

Section

2023.030, subdivision (a), provides that "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

According to section 2023.010, subdivision (d), misuse of the discovery process includes "failing to respond or to submit to an authorized method of discovery."

III. DISCUSSION

The Court first notes the electronic record does not include any moving papers in regard to the motion against IPA. Both the document labeled "Order Proposes Order" and "Motion to Compel" concerning IPA only contain a proposed order. As the record does not contain any moving papers for the Court to review, the Court DENIES the motion against IPA, on both the merits and the request for sanctions.

The Court addresses the motion to compel AHSMG.

A.

Motion to Compel

Baggett

requests the Court order AHSMG to serve verified, code-complaint responses to Baggett's Requests for Production, Set One. Pursuant to section 2031.300, subdivision (b), a party may move to compel responses to a request for production if the responding party fails to serve a timely response to the discovery request. A timely response is either within 30 days after service of the demand or within the extended timeframe agreed upon by parties. (§ 2031.260, subd. (a).)

Baggett

served discovery on October 24, 2025. (Mot., Butzen Decl. ¶ 4, Ex. 2.) Parties agreed to multiple extensions, with the final extension date being January 26, 2026. (Id. at ¶¶ 5-6, Ex. 3-4.) As of the time of filing this motion, AHSMG had not served responses.

AHSMG

served verified, code-compliant responses on July 22, 2026. (Opp., Oldham Decl. ¶ 3.) Therefore, this motion is MOOT. Issues regarding the substance of the motion are issues for motions to compel further responses.

B. Sanctions

Baggett is entitled to sanctions pursuant to section 2023.030 and section 2023.010, subdivision (d), as AHSMG failed to timely respond to discovery absent Baggett seeking a court order.

Baggett requests \$3,360.00 in sanctions, based upon 6 hours of attorney's work at a rate of \$550.00 per hour (Mot., Butzen Decl. ¶ 16), with the attorney's work consisting of 3 hours drafting the motion, 2 hours reviewing and replying to any opposition, and 1 hour appearing for the hearing on the motions. The Court relies on its knowledge and experience in determining the reasonable value of the legal services provided under the circumstances in this case, e.g., the nature of this routine discovery motion and the fact responses were served. (In re Marriage of Huntington (1992) 10 Cal.App.4th 1513, 1524 ["When the trial court is informed of the extent and nature of the legal services rendered, it may rely on its own experience and knowledge in determining their reasonable value."].) The Court has discretion to fix the amount of reasonable monetary sanctions. (Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc. (2020) 56 Cal. App. 5th 771, 791.) The Court finds a reasonable award is \$1180.00, based on four hours of attorney's work at a rate of \$250.00 per hour. Therefore, the Court imposes sanctions of \$1000.00 on AHSMG and AHSMG's counsel.

IV. CONCLUSION

Plaintiff

Chris Baggett's motion to compel Defendant IPA's responses to Request for Production, Set One, is DENIED.

Plaintiff

Chris Baggett's motion to compel Defendant AHSMG's responses to Request for Production, Set One, is MOOT.

Plaintiff Chris Baggett's request for sanctions is GRANTED, in part. AHSMG and AHSMG's counsel are ordered to pay \$1,000.00 in sanctions to Baggett within 30 days of the hearing on the motion.

The request for sanctions is denied as to IPA.

Baggett is ordered to give notice.

DATED:

August 3, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.